

Justification Review Document
for Other than Full and Open Competition - FAR Part 6

Program/Equipment: ATEC Vertical Wind Tunnel.

Authority: 10 U.S.C. 3204(c)(1), as implemented by FAR 6.302-1.

Amount: [REDACTED]

Prepared by:

Typed Name: Joseph L. Schaefer DSN: 804-503-4977

Title: CPT, LG (51C), Contract Specialist Date: 23DEC24

E-mail: Joseph.L.Schaefer.mil@army.mil

Contracting Officer:

Typed Name: James N. Berry DSN: 336-408-2389

Date Reviewed: 23DEC24 E-Mail: James.N.Berry16.mil@army.mil

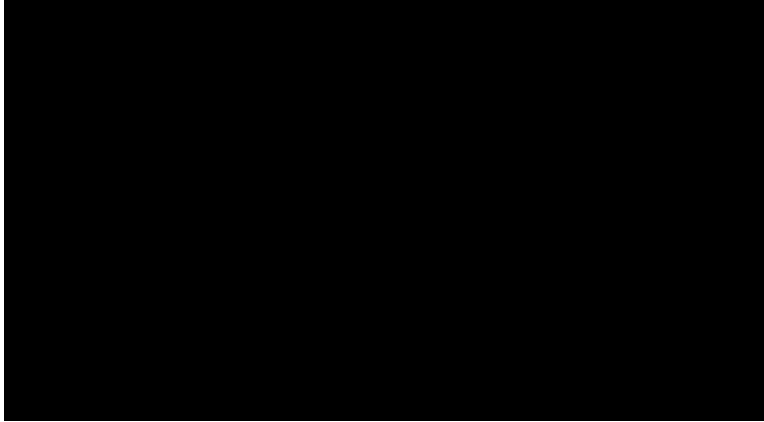
Requirements & Technical Representative:

[REDACTED]

Justification and Approval
for Other than Full and Open Competition – FAR Part 6

1. Contracting Activity: MICC Fort Liberty.

2. Description of Action: Approval is requested to issue a new, firm-fixed price BPA with FFP options in the total estimate amount of [REDACTED] using O&M funds for:



3. Description of Supplies/Services: Vertical Wind Tunnel Training Facility Rental within 30 miles of Fort Liberty, NC with a PoP of 01 February 2025 to 31 January 2030 with an option to extend for up to six months, for the Airborne and Special Operations Test Directorate (ABNSOTD) who determined that readiness and proficiency training in a Vertical Wind Tunnel (VWT) is required and a bona fide need to meet its mission to provide a trained Military Free Fall Detachment. VWT supports training and skills development of free fall parachutists in a controlled environment allowing coaches to guide and develop individuals and groups prior to actual free fall flight. Basic requirement is 73 hours of training and 12 hours of instructor development per Fiscal Year.

4. Authority Cited: 10 U.S.C. 3204(c)(1), as implemented by FAR 6.302-1.

5. Reason for Authority Cited: In accordance with FAR Part 6.302-1, only one responsible source and no other supplies or services will satisfy requiring activity needs. Paraclete XP SkyVenture, LLC is the only known source with the facility and capabilities required within the requiring activity's specifications. A Vendor Availability search determined that only two vendors in the nation operate a vertical wind tunnel that meets the requiring activity's need for a 15 foot flight chamber. Of those two vendors, Paraclete XP SkyVenture LLC is the only vendor located within the required 30 mile radius (see Vendor Availability search document in market research). Paraclete XP SkyVenture LLC is the incumbent for this requirement and the requiring activity is satisfied with its performance.

(Source Selection Information - See FAR 2.101 and 3.104-4)

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6. Efforts/Actions to Obtain Competition: A Sources Sought notice posted 15 November 2024 to determine if there were multiple small business concerns capable of providing the service. This resulted in one response from BHPE LLC located in Oklahoma City, OK. BHPE LLC did not respond to a request for a capability document meeting this requirement. Paraclete XP SkyVenture, LLC submitted a late response expressing interest in this requirement on 5 December 2024. They provided a capability document describing how they intended to meet this requirement on 18 December 2024. Paraclete XP SkyVenture LLC is the only vendor that meets both the technical and location requirements. This J&A will also be publicized to provide additional industry awareness.

a. Effective competition. Market research suggests no other vendors exist that can meet the requiring activity's specification and location needs. [REDACTED]

b. Subcontracting competition. Subcontracting is not anticipated for this requirement.

7. Market Research: Paraclete XP SkyVenture, LLC is the only known vendor located within 30 miles of Fort Liberty, NC that meets requiring activity specifications. No others responded to the sources sought notice with a demonstrated ability to meet the requirement.

8. Interested Sources:

- a. Paraclete XP SkyVenture, LLC. Incumbent to previous contract for this requirement.
- b. BHPE, LLC. Responded to sources sought notice but was did not respond to a request for capability documents.

8. Other Facts:

a. Procurement history. Previous requirement was met using contract W91247-23-D-0006 with a period of performance from 9 January 2023 to 8 January 2025 and a total value of \$189,480. The incumbent is Paraclete XP SkyVenture LLC.

9. Requirements & Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

(Source Selection Information - See FAR 2.101 and 3.104-4)

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10. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

Signature: BERRY.JAMES.NORMAN.III.1393250409 Digitally signed by BERRY.JAMES.NORMAN.III.1393250409
Date: 2024.12.31 10:46:04 -05'00' Date: 31DEC24
Typed Name: James Berry Title: MAJ, LG (51C), Contracting Officer

11. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: BERRY.JAMES.NORMAN.III.1393250409 Digitally signed by BERRY.JAMES.NORMAN.III.1393250409
Date: 2024.12.31 10:45:43 -05'00' Date: 31DEC24
Typed Name: James N. Berry Title: MAJ, LG (51C), Contracting Officer

12. I have reviewed this justification and find it adequate to support other than full and open competition.

Legal Counsel:

Typed Name: Alana R. Hines DSN: 910-396-8953
Title: Command Judge Advocate Date: 31DEC24
Signature: HINES.ALANA.REED.1279447774 Digitally signed by HINES.ALANA.REED.1279447774
Date: 2024.12.31 10:51:30 -05'00'

Approval

Based on the foregoing justification, I hereby approve the procurement of Vertical Wind Tunnel facilities and instruction valued at [REDACTED] on an other than full and open competition basis pursuant to the authority of 10 U.S.C. 3204(c)(1), as implemented by FAR 6.302-1, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for this acquisition.

Signature: BERRY.JAMES.NORMAN.III.1393250409 Digitally signed by BERRY.JAMES.NORMAN.III.1393250409
Date: 2024.12.31 11:11:38 -05'00' Date: 31DEC24

Typed Name: James Berry Title: Contracting Officer